

## 25STCV04002 25STCV04002

County: los-angeles

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Case Number: 25STCV04002 Hearing Date: September 10, 2026 Dept: 731

[TENTATIVE] ORDER RE: PLAINTIFF'S

MOTION TO STRIKE DEFENDANT OLGA RODRIGUEZ, TRUSTEE OF THE JHR TRUST'S ANSWER

Moving Party: Plaintiff, Marian Picený

Opposing Party: None

Notice: OK

### Background Facts

Plaintiff Marian Picený sues various

Defendants—(1) Jose Hilarion Ruiz Aguilera, as trustee of the Jose Hilarion Ruiz Aguilera Living Trust, (2) Jose Hilarion Ruiz Aguilera, as an individual, (3) Doe 1, The Estate of Jose Ruiz, (4) Doe 2, Olga Rodriguez, (5) Doe 3, Olga Rodriguez, Trustee of the JHR Trust, and Does 4 through 100—pursuant to an October 29, 2025, First Amended Complaint, alleging claims of (1) Negligence, (2) Breach of Implied Warranty of Habitability, (3) Civil Penalties for Harassment in Violation of Los Angeles Anti-Harassment Ordinance, LAMC Section 45.30 et seq., and (4) Violation of Civil Code, §1942.4.

Now before the Court is Plaintiff's

motion to strike a May 29, 2026, Answer to the FAC filed by Doe 3, "Olga Rodriguez" "In Pro Per" on behalf of "Olga Rodriguez trustee of the JHR trust."

Motion to Strike

Answer

a. Legal  
Standard

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

For the purposes of a motion to strike pursuant to Sections 435 to 437 of the Code of Civil Procedure, the term “pleading” generally means a demurrer, answer, complaint, or cross-complaint, (Code Civ. Proc., § 435, subd. (a)), and an immaterial allegation or irrelevant matter in a pleading entails (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, or (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint (Code Civ. Proc., § 431.10, subds. (b)(1)-(3), (c)).

Discussion

After review, the Court finds in favor of Plaintiff.

Here, on May 29, 2026, in response to the FAC, Doe 2, Olga Rodriguez, in pro per, filed an Answer on behalf of Doe 3, Olga Rodriguez, Trustee of the JHR Trust.

Under California law, a non-attorney trustee generally cannot represent a trust in a civil action in propria persona (in pro per) when the action involves third parties, as doing so constitutes the unauthorized practice of law. (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 549 (*Ziegler*); *Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1529 (*Aulisio*), citing *Ziegler*, supra, at p. 549; see Bus. & Prof. Code, § 6125.)

However, a trustee may represent

themselves in pro per under narrow exceptions: when the trustee is also the sole settlor and sole beneficiary of the trust, or when the litigation is a probate proceeding between the trustee and the trust beneficiaries rather than a dispute against a third party. (Aulisio, supra, 230 Cal.App.4th at p. 1525; Donkin v. Donkin (2014) 47 Cal.App.5th 469, 472.)

Here, a review of the May 29, 2026,

Answer fails to specify whether Olga Rodriguez is the sole settlor and sole beneficiary of the JHR Trust. Absent allegations to that effect, the face of the Answer lacks ultimate facts that would permit this Court to conclude that Olga Rodriguez, as an individual, is not engaged in the unauthorized practice of law by filing an Answer on behalf of Olga Rodriguez, as Trustee of the JHR Trust.

#### c. Conclusion

Plaintiff Marian Picensy's motion to strike is accordingly GRANTED, with leave to amend. (Code Civ. Proc., § 430.41, subd. (e)(1).)

Plaintiff Marian Picensy is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at [smcdept731@lacourt.org](mailto:smcdept731@lacourt.org) indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.